

Meet and Confer. Plaintiffs have provided sufficient evidence of their attempt to meet and confer prior to filing the motion. Even if efforts were insufficient, that is not grounds to deny the motion. CCP § 435.5(a)(4).

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. Pursuant to CCP § 436(b), a Court may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court.

In this matter, Default was entered on July 14, 2025. On March 25, 2026 the parties submitted a Stipulation and Order. The Order was executed on April 6, 2026 and reads, in relevant part “Defendants FARZAD SABET and MARIKIT SABET shall file and serve their answer, and will file no other responsive pleadings to the complaint, such as demurrer or motion for judgment on the pleadings, within twenty (20) days of the date of this Order.” The Order does include any wording about a Cross-Complaint. Defendants filed an Answer and Cross-Complaint on May 22, 2026. This is long past the 20 days permitted by the Order. However, Plaintiffs only seek to strike the Cross-Complaint, not the Answer.

The Cross-Complaint was not filed in conformity with the Court’s Order dated April 6, 2026. The plain language of the Order permitted that only an Answer be filed. The Court notes that Defendants used the Opposition to this motion to seek leave to file a Cross-Complaint. That is improper. Defendants will need to bring their own noticed motion seeking leave to file a Cross-Complaint.

The Motion to Strike is **GRANTED**. The Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet is ordered **STRICKEN**. The clerk is directed to strike the Cross-Complaint filed May 22, 2026. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor did not respond to the motion. Plaintiffs filed two proofs of service. In the Proof of Service by First-Class Mail, the address used for service is not listed on pleadings in this matter, is not counsel’s address of record in this matter, and is not the address listed for counsel on the State Bar’s website. Additionally, the service by mail was untimely. CCP § 1005(b). However, the Proof of Electronic Service is in proper form and reflects timely service using the email address listed for Defendant’s counsel on the pleadings in this matter. Based on the Proof of Electronic Service, the Court finds that this motion was properly noticed.

The Order from which Plaintiffs seek relief is dated May 11, 2026. The Order granted Defendant’s Motion to Terminate Case which was heard on that same date. The motion was properly noticed. However, Plaintiffs did not file an Opposition. Counsel for Plaintiffs, Daniel Henderson, appeared at the hearing and argued the merits of the motion. The Court adopted the tentative ruling, which was to grant the motion. Granting of the motion resulted in a dismissal of Plaintiffs’ Complaint. A Motion for Reconsideration was filed on May 19, 2026. This motion was denied on June 1, 2026 for being untimely filed and there being insufficient proof that Defendant received notice of the Motion for Reconsideration. On August 3, 2026 the Court entered judgment in favor of Defendant.

In support of the motion at issue today, Eric Alan Berg provided a declaration stating that he is the principal of the Law Office of Berg & Associates and as the principal, he is responsible for supervision of this matter. Mr. Berg failed to ensure that the Motion for Reconsideration was timely filed and properly noticed. Mr. Berg also

failed to ensure that a written opposition was filed in the Motion to Terminate Case. Mr. Berg provides that these omissions were the result of his own oversight and not the result of any willful conduct, bad faith, or defiance of the discovery statutes.

CCP § 473(b) has both a discretionary provision and a mandatory provision. Plaintiffs move under the mandatory provision.

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

CCP § 473(b).

Plaintiffs have presented evidence that their attorney's mistake, inadvertence, and neglect resulted in a dismissal being entered. This motion was filed within the required six-month period for bringing a motion. Therefore, the relief requested is mandatory. While it is unclear from the moving papers the exact relief requested, based on the proposed Order attached to the moving papers, it appears that Plaintiffs are seeking a denial of the Motion to Terminate Case. However, the neglect of counsel was failure to file a written Opposition. Allowing Plaintiffs to file a written Opposition would not necessarily result in the Motion to Terminate Case being denied. Therefore, the only relief Plaintiffs are entitled to is the opportunity to file a written Opposition to the Motion to Terminate Case.

The Court will set aside the Judgment entered on August 3, 2026 and reset the Motion to Terminate Case for hearing, which will allow Plaintiffs to file a written opposition. However, this will not occur until Defendant is compensated for legal fees and costs reasonably incurred based on Plaintiff's counsel's neglect.

- (1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:
 - (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.
 - (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.
 - (C) Grant other relief as is appropriate.
- (2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c).

Defense counsel may submit an affidavit detailing the attorney fees and costs incurred for any work done on the matter after May 11, 2026. The Court intends to order that Plaintiff's counsel pay all reasonable legal fees and costs incurred due to Plaintiff's counsel's neglect in this matter. Because this is not a default or default judgment,

CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior to setting aside the judgment and resetting the Motion to Terminate. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing.

JORDAN, II VS. SITE WORK SOLUTIONS

CASE NUMBER: 25CV-0209057

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Charles David Jordan II and Counsel JS Abrams Law on July 22, 2026 for failure to timely serve the Complaint in violation of CRC 3.110(b). Counsel filed a declaration explaining the reason for the delay. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of service.

Tentative Ruling on Motion to be Relieved as Counsel: Navid Kanani of JS Abrams Law PC moves to be relieved as counsel for Plaintiff Charles David Jordan II.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case. CRC 3.1362(d). "The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." CRC 3.1362(d)(2). Counsel has not made reasonable efforts to locate a current address for Plaintiff. Additionally, there is no proof of service for the proposed Order, which is required to be served on Plaintiff.

The Motion to be Relieved as Counsel is **DENIED** without prejudice for lack of proper notice to Plaintiff. The Court is unable to modify the proposed Order submitted. Plaintiff's counsel is ordered to submit an Order consistent with the Court's ruling.

ROWEN VS. NORTHERN VALLEY CATHOLIC SOCIAL SERVICE, INC.

CASE NUMBER: 25CV-0209519

Tentative Ruling on Motion for Stay of Proceedings: Defendant Northern Valley Catholic Social Services, Inc. moves to stay these proceedings pending the outcome of *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Plaintiff Robert Rowen received proper notice of the motion and did not file an Opposition.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed July 24, 2024 and the Second Amended Complaint filed in *Thompson vs. Northern Valley Catholic Social Services, Inc.*, Butte County Case No. 24CV02468. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.